EXCEL LEGACY REALTY GROUP

TRUST SERVICES • NEWLY REVISED EDITION

Affidavit & Certificate of Personal Property Trust

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EXCEL LEGACY REALTY GROUP

AFFIDAVIT AND CERTIFICATE OF PERSONAL PROPERTY TRUST

Certification of Trust Authority for Financial Institutions & Counterparties

STATE OF [Governing State] COUNTY OF [County]

BEFORE ME, personally appeared [Trustee Name(s)], currently acting Trustee(s), who depose(s) and state(s):

1. Trust Identification & Settlors/Trustees: [Name of Trust], dated [Effective Date] ([ ] Revocable [ ] Irrevocable). Settlor(s): [Settlor Name(s)]. Acting Trustee(s): [Trustee Name(s)]. Mailing Address: [Street Address, City, State ZIP].

2. Tax ID & Subject Asset / Account: Tax ID / EIN: [Trust/LLC FEIN or Grantor SSN]. Subject Asset / Account: [Describe LLC Interest (State & Entity #) and/or Bank Name & Account #].

3. Full Force, Powers & FinCEN CDD Authority: The Trust is in full force and unrevoked. The Trustee(s) hold full power under the Declaration of Trust to hold and convey personal property and entity interests; open and operate bank, merchant, and brokerage accounts; sign contracts; and provide FinCEN Customer Due Diligence (CDD) beneficial ownership and tax disclosures.

4. Signing Authority: [ ] Sole Trustee [ ] Either Co-Trustee independently [ ] Either under $[Amount]; joint at/above $[Amount] [ ] Joint signatures required.

5. Successor Trustee, Reliance & Governing Law: Successor Trustee: [Successor Trustee Name]. Good-faith third-party reliance is protected under applicable Trust Code law without inspecting internal schedules. Governed by [Governing State] law.

6. Sworn Verification: Declared true, correct, and complete under penalty of perjury under [Governing State] law.

NOTARY ACKNOWLEDGMENT

State of [Governing State], County of [County]) ss. Subscribed, sworn to, and acknowledged before me on this _____ day of _____, 20____, by [Name(s) of Signer(s)], proved via satisfactory identification to be the individual(s) who appeared before me. _____ Notary Public, State of [Governing State], County of _____ My Commission Expires: _____ Acting in the County of: _____

_____ [Trustee #1 Name] Affiant & Trustee

_____ [Trustee #2 Name (if Co-Trustee)] Affiant & Co-Trustee